



Bureau of Experts at the Council of Ministers
Official Translation Department

Law of Combating Narcotic Drugs and Psychotropic Substances

Royal Decree No. M/39
August 13, 2005

Translation of Saudi Laws

NOTES:

1. This translation is provided for guidance. The governing text is the Arabic text.
2. The translation of Saudi laws takes the following into consideration:
 - Words used in the singular form include the plural and vice versa.
 - Words used in the masculine form include the feminine.
 - Words used in the present tense include the present as well as the future.
 - The word “person” or “persons” and their related pronouns (he, his, him, they, their, them, and who) refer to a natural and legal person.
3. Amendments to this Law are provided in the Appendix.

For any comments or inquiries, please contact the Official Translation Department at:

otd@boe.gov.sa



Law of Combating Narcotic Drugs and Psychotropic Substances

Definitions

Article 1

In this Law, the following words and phrases shall have the meanings assigned thereto, unless the context requires otherwise:

Narcotic Drugs: A natural, synthetic, or manufactured narcotic drug listed in Table No. 1 (attached to the Law).

Psychotropic Substances: A natural, synthetic, or manufactured psychotropic substance listed in Table No. 2 (attached to the Law).

Chemical Precursors: A substance listed in Table No. 3 (attached to the Law) which is used in the illegal manufacture of narcotic drugs or psychotropic substances.

Importing: Bringing narcotic drugs or psychotropic substances into the Kingdom.

Exporting: Exporting narcotic drugs or psychotropic substances outside the Kingdom.

Smuggling: All acts deemed to be smuggling according to the Customs Law.

Producing: Separating narcotic drugs or psychotropic substances from their plant sources.

Manufacturing: Non-production operations that are used to obtain narcotic drugs or psychotropic substances, including purification and extraction and the transformation of narcotic drugs into other narcotic drugs or the transformation of psychotropic substances into other psychotropic substances as well as manufacturing preparations other than the preparations prepared by pharmacies based on medical prescriptions.

Extraction: Analyzing a narcotic drug or psychotropic substance and separating its components to isolate the active ingredients.

Possession: Holding narcotic drugs or psychotropic substances by way of ownership or pursuant to official authorization.

Acquisition: Holding narcotic drugs or psychotropic substances by way of ownership and pursuant to official authorization for any purpose.

Brokerage: Mediating, with or without consideration, between parties dealing in narcotic drugs or psychotropic substances to facilitate the conclusion of a deal.

Technical Expertise and Physical Evidence: Analyzing a seized substance at an accredited laboratory to identify its nature and to determine whether or not it is a narcotic drug or psychotropic substance.

Proceeds: Any funds or items of monetary value obtained, directly or indirectly, from the commission of any of the crimes provided for in the Law.

Property: Assets of any type, whether movable or immovable, or tangible or intangible, and the documents or deeds establishing ownership of such assets or any right associated therewith.



Money Laundering: The commission of any act, directly or indirectly (through brokerage), for the purpose of acquiring or moving funds, rights, or property obtained as a result of committing any of the crimes provided for in the Law, or for the purpose of concealing or disguising the nature, source, location, movement, related rights, or ownership of such funds or property; or the participation, as a principal or accessory, in such acts with the intent of concealing or disguising the illegitimate source of the funds or assisting any person involved in such crimes to enable him to launder money and evade punishment.

Provisional Attachment: The temporary seizure of items or property relating to a pending case, pursuant to a decision issued by the court or competent authority, which prevents the owner of said items or property from disposing of, moving, or transferring the same.

Confiscation: A process whereby all or part of the items or property relating to or generated from any of the crimes provided for in the Law devolve to the State pursuant to a judicial ruling.

Regulations: Implementing Regulations of the Law.

Article 2

Carrying specified quantities of pharmaceuticals containing narcotic drugs or psychotropic substances on board means of transportation, such as vessels and aircraft, for the purpose of dealing with emergencies and providing first aid services shall not be deemed importing, exporting, or smuggling, provided that such pharmaceuticals are authorized in the country the nationality or flag of which is carried by the means of transportation, and that the person in charge of the means of transportation declares the quantity of such substances upon arrival to the Kingdom and departure therefrom. The Regulations shall specify the means of transportation covered by the provision of this Article, the maximum quantities of pharmaceuticals and preparations that may be carried thereby, the concentration of narcotic drugs or psychotropic substances in such pharmaceuticals and preparations, and the controls necessary to ensure that the pharmaceuticals and preparations remain on board the means of transportation while it is in the territory of the Kingdom. Said pharmaceuticals and preparations shall be deemed narcotic drugs and psychotropic substances authorized to transit through the Kingdom.



Criminal Acts

Article 3

The following shall be deemed criminal acts:

1. Smuggling narcotic drugs or psychotropic substances or receiving them from smugglers.
2. Importing, exporting, producing, manufacturing, extracting, transforming, possessing, acquiring, selling, purchasing, distributing, delivering, receiving, transporting, bartering, using, brokering, facilitating the use of, gifting, financing, or supplying narcotic drugs or psychotropic substances, except in the cases provided for in this Law and in accordance with the conditions and procedures stipulated therein.
3. Cultivating the plants listed in Table No. 4 (attached to this Law) or importing, exporting, owning, possessing, acquiring, disposing of, or bartering any part of such plants at any stage of cultivation or the seeds thereof, or participating in any of such acts, except in the cases provided for in this Law and in accordance with the procedures stipulated therein. Any person who performs any of the tasks necessary for the cultivation of seeds or seedlings or the care of crops until they mature and are harvested shall be deemed a cultivator.
4. Manufacturing, selling, transporting, or distributing equipment or materials for use in the illegal cultivation, production, or manufacturing of narcotic drugs or psychotropic substances.
5. Laundering money obtained from the commission of any of the crimes provided for in this Law.
6. Participating, through conspiracy, incitement, or assistance, in the commission of any of the acts provided for in paragraphs (1), (2), (3), (4), and (5) of this Article.
7. Attempting to commit any of the acts provided for in paragraphs (1), (2), (3), (4), (5), and (6) of this Article.

Judicial Jurisdiction

Article 4

The competent authorities in the Kingdom shall monitor and prosecute any person who commits any of the crimes provided for in this Law in the following cases:

1. The crime is committed inside the Kingdom's territory or the result or impact of the crime extends thereto.
2. The crime is committed on board a vessel carrying the flag of the Kingdom.
3. The crime is committed on board a foreign vessel during its transit through the territorial sea of the Kingdom or the result or impact of such crime extends to the Kingdom's territory.
4. The captain of the vessel, or a diplomatic agent or consular officer of the country the flag of which is carried by the vessel, requests the assistance of local authorities to take the measures necessary to combat the illicit trafficking of narcotic drugs and psychotropic substances, in accordance with Article 27 of the United Nations Convention on the Law of the Sea.
5. The crime is committed on board an aircraft carrying the flag of the Kingdom.



Article 5

The competent authorities in the Kingdom may request the assistance of other countries to investigate the smuggling or illicit trafficking of narcotic drugs and psychotropic substances on board a vessel in the high seas if they have reason to believe that the vessel carries the flag of the Kingdom. The country whose assistance is requested may, upon coordination with the competent authorities in the Kingdom, take the necessary measures against such vessel or the persons or goods on board.

Article 6

The rules of jurisdiction, provided for in Articles 4 and 17 of the United Nations Convention of 1988, regarding the prosecution of crimes relating to narcotic drugs and psychotropic substances committed on board vessels or aircraft shall, in all cases, be deemed supplementary and explanatory to the rules of jurisdiction provided for in this Law.

Article 7

1. The competent authorities in the Kingdom shall prosecute and punish any Saudi citizen who commits, outside the Kingdom, any of the crimes provided for in Article 3 of this Law if the crime is punishable in the country in which it was committed and he was not prosecuted or punished by the authorities of said country.
2. Paragraph (1) of this Article shall apply to Saudi diplomatic or consular staff members abroad if their prosecution is precluded due to the immunity they enjoy in the countries where they are accredited.

Article 8

The competent authorities in the Kingdom shall take the measures necessary and prosecute any person accused of criminal complicity and principal or accessory participation or assistance by involvement, incitement, or preparation, or accused of attempting to commit any of the crimes provided for in Article 3 of this Law, outside the Kingdom's territory if the intent of such person is to prepare for or facilitate the commission of any of such crimes inside the Kingdom.

Legal Assistance

Article 9

The competent authorities in the Kingdom shall provide mutual legal assistance in accordance with applicable laws and regulations as well as agreements to which the Kingdom is a party, and shall comply with the principle of reciprocity.

Article 10

The Regulations shall specify the entity responsible for considering requests for assistance and shall determine the form and contents of such requests; the procedures for approving, rejecting, or postponing the same; and the conditions for their use.



Controlled Delivery

Article 11

1. The competent authorities in the Kingdom may, in coordination with the authorities of other countries, allow narcotic drugs and psychotropic substances or substances substituting the same to enter, transit, or exit the territory of the Kingdom for the purpose of identifying and apprehending the persons involved in smuggling and trafficking such substances. Such coordination shall include the following:
 - a) Coordinating with the authorities of other countries regarding the inspection and verification of shipments subject to controlled delivery before permitting the passage of such shipments.
 - b) Coordinating with the authorities of other countries regarding replacing narcotic drugs or psychotropic substances whose passage is permitted with similar substances to ensure that no narcotic drugs or psychotropic substances are removed from the means of transportation while in transit. In such case, the authorities may, when necessary, agree on the financial matters relating to the implementation of controlled delivery procedures.
2. Controlled delivery decisions shall be made on a case-by-case basis.

Licensing the Import or Trade of Narcotic Drugs and Psychotropic Substances for Legal Purposes

Article 12

An import or export license issued by the Ministry of Health shall be required for importing or exporting narcotic drugs and psychotropic substances for legal purposes. Such license shall be issued for one renewable year and shall include the particulars of the licensee and the details of the narcotic drug or psychotropic substance as specified in the Regulations.

Article 13

A license for importing or exporting narcotic drugs and psychotropic substances may only be issued to the following establishments:

1. Pharmaceutical companies and their agents.
2. Pharmaceutical wholesale warehouses.
3. Public and private treatment facilities as well as research institutes and centers requiring the use of narcotic drugs and psychotropic substances.
4. Chemical, industrial, biological, or food laboratories or other laboratories requiring the use of narcotic drugs and psychotropic substances.
5. Factories licensed to manufacture pharmaceuticals containing narcotic drugs and psychotropic substances.



Article 14

Narcotic drugs and psychotropic substances may only be imported or exported in tightly-sealed packages accompanied with a statement specifying the name, quantity, concentration, and pharmaceutical form of the substance, even if it is only a sample. Packages containing such substances may not contain any other substance.

Article 15

The Ministry of Health shall review the quantity to be imported or exported and shall approve, amend, or reject the same in accordance with the controls specified in the Regulations.

Article 16

Narcotic drugs and psychotropic substances arriving at customs may not be released except pursuant to a clearance license issued by the Ministry of Health. Said license shall be returned to the Ministry after clearance is completed.

Article 17

The Minister of Interior may license government agencies and departments and research institutes and centers to import and cultivate the seeds of the plants listed in Table No. 4 (attached to this Law) for medical and research purposes, subject to the controls and conditions specified in the Regulations.

Article 18

Narcotic drugs and psychotropic substances may not be transported within the Kingdom except in accordance with the controls and conditions specified in the Regulations.

Article 19

The Ministry of Interior may, in coordination with the agency in charge of customs, authorize the transit of narcotic drugs and psychotropic substances through the territory of the Kingdom to another country, in accordance with the Regulations.

Article 20

1. The Ministry of Health may license pharmaceutical wholesale warehouses, pharmaceutical factories, and pharmacies to trade in narcotic drugs and psychotropic substances for medical and scientific use inside the Kingdom, provided that such establishments are managed by Saudi pharmacists licensed to practice the profession.
2. The owner of a pharmaceutical establishment licensed to trade in narcotic drugs and psychotropic substances may not dispose of such establishment without obtaining the approval of the Ministry of Health.

Article 21

The inventory of narcotic drugs and psychotropic substances in warehouses, pharmaceutical factories, and treatment facilities shall be entrusted to a Saudi pharmacist or a Saudi pharmacy technician; and the inventory of narcotic drugs and psychotropic substances in in-patient departments at treatment facilities shall be entrusted to the head nurse of the department, or his designee.



Article 22

The following persons may not be entrusted with the inventory of narcotic drugs and psychotropic substances in licensed establishments:

1. A person sentenced to the penalty prescribed for intoxication.
2. A person convicted of a crime relating to narcotic drugs or psychotropic substances.
3. A person convicted of a crime impinging on honor or integrity.
4. A public servant dismissed from his job pursuant to a disciplinary decision for reasons impinging on honor or integrity.

Article 23

A pharmaceutical establishment licensed to import, export, possess, or trade in narcotic drugs and psychotropic substances and a treatment facility or research institution licensed to use narcotic drugs and psychotropic substances shall keep records of such drugs and substances and control dispensing thereof, and shall provide the Ministry of Health with such records, in accordance with the Regulations.

Article 24

1. Narcotic drugs and psychotropic substances may not be sold wholesale except to licensed pharmaceutical establishments and treatment facilities.
2. Treatment facilities may not transfer the narcotic drugs and psychotropic substances allocated thereto to other entities without the approval of the Ministry of Health.
3. Sold narcotic drugs and psychotropic substances may only be delivered to pharmacists or pharmacy technicians entrusted with the same in establishments licensed to trade in narcotic drugs and psychotropic substances. Delivery must be made against an official receipt.

Licensing the Manufacture of Medical Preparations Containing Narcotic Drugs and Psychotropic Substances

Article 25

The establishment or construction of factories or laboratories that specialize in the production or separation of narcotic drugs and psychotropic substances for scientific or commercial purposes shall be licensed pursuant to a resolution by the Council of Ministers.

Article 26

Pharmaceutical factories must obtain a license from the Ministry of Health to manufacture medical preparations containing narcotic drugs or psychotropic substances. In such case, the license applicant must satisfy the conditions of the license for trading in narcotic drugs and must hold such license.



Article 27

A licensed factory shall not dispose of the narcotic drugs and psychotropic substances in its possession or use the same except for manufacturing the medical preparations specified in the license, and shall comply with the provisions of this Law and the Regulations regarding keeping records of such drugs and substances as well as the disposal and control thereof.

Storage and Dispensing of Narcotic Drugs and Psychotropic Substances

Article 28

Narcotic drugs and psychotropic substances in licensed establishments shall be stored in a place designated therefor tightly sealed in their original containers to prevent tampering therewith or any alteration in the quantity, composition, weight, or concentration thereof, subject to the conditions specified in the Regulations.

Article 29

A pharmacist may not dispense pharmaceuticals, to be specified by the Ministry of Health, that contain narcotic drugs or psychotropic substances without a medical prescription issued by a physician, veterinarian, or dentist licensed to practice in the Kingdom. The Regulations shall specify the conditions, details, and validity of such prescriptions.

Article 30

A medical prescription for narcotic drugs or psychotropic substances shall, after dispensing such drugs or substances, be kept at the pharmacy. The date of dispensing the prescription shall be recorded thereon as well as its registration number in the medical prescriptions register, and it shall be stamped with the pharmacy's stamp to indicate that it has been dispensed. The Regulations shall specify the duration for keeping such prescriptions.

Article 31

The pharmacist or pharmacy technician in charge must record all the pharmaceuticals containing narcotic drugs or psychotropic substances which are delivered to or dispensed from the pharmacy in registers designated for such purpose, in accordance with the Regulations.

Article 32

Each treatment facility shall periodically review the procedures for prescribing and dispensing narcotic drugs and psychotropic substances to ensure that such drugs and substances are prescribed and dispensed in accordance with established medical practices, and shall notify the Ministry of Health of any violations in this regard.



Licensing the Possession and Use of Narcotic Drugs and Psychotropic Substances for Treatment Purposes

Article 33

1. Physicians shall be licensed to possess, prescribe, and dispense narcotic drugs and psychotropic substances at their private clinics, in accordance with the controls specified in the Regulations
2. Specialized paramedics may possess and administer certain emergency pharmaceuticals containing narcotic drugs or psychotropic substances only in emergency situations, in accordance with the controls specified in the Regulations.

Article 34

A physician may not prescribe for himself or any of his family members any pharmaceutical containing narcotic drugs or psychotropic substances regardless of its quantity.

Permitting Patients to Possess and Use Narcotic Drugs and Psychotropic Substances

Article 35

1. An unlicensed person may not possess narcotic drugs or psychotropic substances unless prescribed to him by a licensed physician in accordance with the provisions of this Law, nor may such person assign the narcotic drugs or psychotropic substances dispensed to him for treatment purposes in any form to any other person, and he must return any unused dispensed or remaining narcotic drugs or psychotropic substances to the source thereof.
2. In case of the death of a person to whom narcotic drugs or psychotropic substances were dispensed, the person in possession of such drugs or substances must return them to their source.

Article 36

The chemical precursors listed in Table No. 3 (attached to this Law) may not be imported, exported, manufactured, traded in, used, assigned, or possessed, except in accordance with the conditions and procedures specified in the Regulations. The Regulations shall also specify the procedures for monitoring such chemical precursors as well as the competent agency therefor.



Penalties

First: Principal Penalties

Article 37

First:

Subject to clause (Second) of this Article, any person who is established to have committed any of the following acts shall be subject to the death penalty as a discretionary penalty:

1. Smuggling narcotic drugs or psychotropic substances.
2. Receiving narcotic drugs or psychotropic substances from a smuggler.
3. Importing, exporting, manufacturing, producing, transforming, extracting, cultivating, or receiving narcotic drugs or psychotropic substances with the intent of dealing, in other than the cases licensed under this Law.
4. Conspiring to commit any of the acts provided for in the previous paragraphs.
5. Second-time dealing in narcotic drugs or psychotropic substances by selling, gifting, distributing, delivering, receiving, or transporting the same, provided that the violator was previously convicted of first-time dealing.
6. First-time dealing, provided that the violator was previously convicted of committing any of the acts provided for in paragraphs (1), (2), and (3) of this Article.

Second:

The court may, at its discretion, commute a death sentence to imprisonment for a period of not less than 15 years, flogging that does not exceed 50 lashes in each batch, and a fine of not less than one hundred thousand riyals.

Third:

A perpetrator who is not sentenced to the death penalty provided for in clause (First) of this Article shall be subject to imprisonment for a period of not less than 25 years, flogging that does not exceed 50 lashes in each batch, and a fine of not less than one hundred and fifty thousand riyals in the following cases:

1. The perpetrator repeats the crime after being convicted and sentenced to a penalty pursuant to this Article.
2. The perpetrator is a public employee or servant, or any person entrusted with implementing the provisions of this Law, combating narcotic drugs and psychotropic substances, or controlling the circulation or possession thereof.
3. The perpetrator is a member of an organized gang whose activities include smuggling narcotic drugs and psychotropic substances into the Kingdom or trafficking or offering narcotic drugs and psychotropic substances for use, or the crime is committed together with an international crime, such as smuggling arms, counterfeiting currency, or terrorism.
4. The perpetrator is armed and uses his weapon in the commission of the crime.



Article 38

1. Any person who, for the purpose of trafficking or dealing—with or without consideration—in other than the cases licensed under this Law, possesses a narcotic drug or the seeds or plants from which narcotic drugs and psychotropic substances are produced; sells, purchases, finances, supplies, acquires, delivers, receives, transports, exchanges, barter, or dispenses the same in any form; or acts as an intermediary for any of such acts shall be subject to imprisonment for a period of not less than five years and not more than 15 years, flogging that does not exceed 50 lashes in each batch, and a fine ranging from one thousand riyals to fifty thousand riyals.
2. The penalties provided for in paragraph (1) of this Article shall be made harsher in the following cases:
 - a) Any of the cases provided for in Article 37(Third) of this Law apply to the perpetrator.
 - b) The perpetrator commits the crime, or part thereof, in a mosque, educational institution, or correctional institution, subject to the Regulations.
 - c) The narcotic drugs or psychotropic substances subject of the crime include heroin or cocaine, or any substance that is equally dangerous based on a technical report approved by the Ministry of Health, provided that such substance is listed in the tables attached to this Law.
 - d) The perpetrator exploits any person under his care or over whom he has actual influence in the commission of the crime or uses a minor therefor, offers or sells narcotic drugs to a minor, or makes a minor use narcotic drugs by means of enticement or threat.
 - e) The perpetrator prepares or manages, in exchange for consideration, a place for using narcotic drugs and psychotropic substances.

Article 39

Any person who, in other than the cases licensed under this Law, possesses, acquires, transports, delivers, or receives narcotic drugs or psychotropic substances for purposes other than trafficking, dealing, using, or personal use shall be subject to imprisonment for a period of not less than two years and not more than five years, flogging that does not exceed 50 lashes in each batch, and a fine of not less than three thousand riyals and not more than thirty thousand riyals.

Article 40

1. Any person who commits the act provided for in Article 3(5) of this Law shall be subject to imprisonment for a period of not less than three years and not more than 10 years, flogging that does not exceed 50 lashes in each batch, and a fine of not less than fifty thousand riyals. The court may impose a harsher penalty if the case warrants the same.
2. A company, sole proprietorship, or establishment, even if it is not licensed to engage in its activity, shall be subject to a fine of not less than three hundred thousand riyals if its manager or any of its employees is convicted of committing the act provided for in Article 3(5) of this Law and it is established that such act was committed for its benefit.
3. If the act is punishable under this Law and another law, the harsher penalty shall be imposed.



Article 41

1. Any person who, for the purpose of using or personal use in other than the cases permitted by law, commits any of the criminal acts provided for in Articles 37 and 38 of this Law shall be subject to imprisonment for a period of not less than six months and not more than two years.
2. The penalty shall be made harsher in the following cases:
 - a) The user is a person entrusted with combating narcotic drugs and psychotropic substances or controlling the possession or circulation thereof, or a person whose occupation requires dealing with any type of narcotic drugs or psychotropic substances.
 - b) The violator uses or is under the influence of a narcotic drug or psychotropic substance while performing his work.

Article 42

1. No action shall be initiated against any person who commits any act relating to the use of or addiction to narcotic drugs and psychotropic substances if such person seeks treatment in person or if his spouse or any of his ascendants, descendants, or relatives seek treatment for him on his behalf, provided that the user or addict surrenders any narcotic drugs or psychotropic substances in his possession or discloses the location thereof.
2. Investigations in cases relating to the first-time use of narcotic drugs and psychotropic substances may be closed, subject to the following conditions:
 - a) The accused is under the age of 20.
 - b) The crime of use or addiction is not committed along with another crime requiring consideration under Sharia.
 - c) The crime of use or addiction is not committed along with a traffic accident that results in fatalities and private rights.
 - d) The accused person does not violently resist arrest in a manner that causes harm to the arresting officers or to others.

Article 43

An addict may, instead of imposing a penalty on him for the use of narcotic drugs and psychotropic substances, be committed to an addiction rehabilitation facility. The Regulations shall specify the cases in which an addict may be ordered to be committed to an addiction rehabilitation facility, the competent authority for issuing such order, and the conditions for the addict's release.

Article 44

A committee named the Committee for Reviewing Addiction Cases shall be formed pursuant to a decision by the Minister of Interior in agreement with the Minister of Health. The Regulations shall specify the Committee's duties, powers, and work rules and procedures as well as the provisions relating to membership therein.

Article 45

If a person in an addiction rehabilitation facility commits any of the crimes provided for in this Law while undergoing treatment, the imprisonment sentence imposed on him shall be executed after deducting the period he spent in the addiction rehabilitation facility.



Article 46

1. A person apprehended frequenting a place prepared for the use of narcotic drugs and psychotropic substances while using the same shall be subject to imprisonment for a period not exceeding three months or flogging that does not exceed 50 lashes, provided that he knows that such place is intended for using such drugs or substances.
2. This Article shall not apply to the spouse, ascendants, descendants, or siblings of a person who prepares a place for the use of narcotic drugs and psychotropic substances nor to the residents of such place, unless they participate in the crime.

Article 47

The Minister of Interior, or his designee, may find it sufficient to deport an addict who arrives to the Kingdom on an Umrah or Hajj visa with a quantity of narcotic drugs or psychotropic substances in his possession not exceeding his personal use. The Regulations shall set the provisions relating to the types and quantities of said drugs and substances.

Article 48

Any person who commits an act in violation of Article 36 of this Law shall be subject to imprisonment for a period not exceeding six months and a fine not exceeding three thousand riyals, or to either penalty.

Article 49

1. Without prejudice to the provisions of the previous Articles, a fine not exceeding twenty thousand riyals shall be imposed on the following:
 - a) Any person licensed to possess or trade in narcotic drugs and psychotropic substances who violates the provisions of Articles 23, 30, and 31 of this Law.
 - b) Any person managing a pharmacy or store licensed to trade in narcotic drugs and psychotropic substances who violates Article 23 of this Law.
 - c) Any person licensed to possess any narcotic drug, psychotropic substance, or plant or seed listed in Tables No. 1, 2, and 4 (attached to this Law) who possesses, in good faith, quantities that are more or less than the quantities that should be in his possession.
2. The penalty shall be doubled and the store shall be closed if the violator commits any of the acts provided for in paragraph (1) of this Article before the lapse of three years from the date of a prior conviction.



Compelling Addicts to Undergo Psychiatric Treatment

Article 50

A user of narcotic drugs or psychotropic substances who is proven to be an addict may, instead of imposing on him the penalty provided for in Article 41 of this Law, be compelled to seek treatment at a specialized psychiatric clinic to help him recover from addiction. A person discharged from an addiction rehabilitation facility shall also be compelled to visit a psychiatric clinic to ascertain his recovery from addiction. In such case, the attending psychiatrist shall, within three months from the date clinic visits commence, submit a report on the case to the Committee for Reviewing Addiction Cases, and the Committee shall, pursuant to said report, decide whether clinic visits should be suspended or continued for another period.

Article 51

Strict confidentiality shall be maintained in the treatment of addicts; the identity of an addict and any information related to him must not be disclosed. Any official who discloses any of such information at any stage of the case shall be subject to imprisonment for a period not exceeding three months or a fine not exceeding thirty thousand riyals.

Second: Supplementary Penalties

Article 52

1. Seized narcotic drugs and psychotropic substances shall be confiscated as well as any substance the manufacture, acquisition, sale, or use of which is illegal, even if such substance does not belong to the accused person or lead to his conviction.
2. Confiscated narcotic drugs and psychotropic substances shall be destroyed or wholly or partially delivered to any government agency to be utilized for scientific, industrial, or medical purposes, as specified in the Regulations.

Article 53

Without prejudice to the rights of bona fide third parties, the following items shall be confiscated pursuant to a judicial ruling:

1. Seized machines, tools, and means of transportation used in the commission of the crime.
2. Property and items generated or collected, directly or indirectly, from the commission of the crime, even if their nature or ownership is concealed or disguised.
3. Proceeds from criminal acts punishable under this Law, even if such proceeds are transformed into other types of property.
4. An amount equal to the value of illegal proceeds if said proceeds are combined with property obtained from legitimate sources.
5. Land on which the plants listed in Table No. 4 (attached to this Law) are cultivated if the land is owned by the perpetrator. If, however, the perpetrator is not the owner of the land, the court shall consider termination of the document pursuant to which possession was granted.



Article 54

The competent court may, on its own motion or pursuant to a request by the investigating authority at any stage of the investigation or when reviewing the case—if it has reasonable grounds, order the provisional attachment of the movable and immovable property of a smuggler or trafficker of narcotic drugs, the property of his spouse or minor children, or the property of any person inside the Kingdom or abroad pending a decision on the case if there is evidence or presumptions indicating that said property, or part thereof, is generated from any of the criminal acts provided for in Article 3 of this Law.

Article 55

1. The license to manage an establishment licensed to trade in narcotic drugs and psychotropic substances for medical or scientific purposes shall be revoked if the perpetrator is the person licensed to manage such establishment or the manager in charge of the establishment and he commits any of the criminal acts provided for in Article 3 of this Law.
2. A convicted person may be barred from practicing his profession for a period not exceeding his imprisonment sentence. A store may be closed temporarily for a period not exceeding one year, or closed permanently if the violator repeats any of the criminal acts provided for in Article 3 of this Law.

Article 56

1. A Saudi citizen convicted of any of the criminal acts provided for in Article 3 of this Law shall, after serving the imprisonment sentence imposed on him, be banned from traveling abroad for a period equal to the term of the imposed sentence, provided that such period is not less than two years. The Minister of Interior may permit travel during the travel ban, if necessary.
2. A non-Saudi person shall, after serving his sentence, be deported from the Kingdom; he shall not be permitted to return to the Kingdom, except as permitted by the instructions related to Hajj and Umrah.

Article 57

1. A person's license to practice a profession shall be revoked if said person is convicted of any of the crimes provided for in Article 3 of this Law.
2. A pharmaceutical establishment's license to trade in narcotic drugs and psychotropic substances shall be revoked if the owner of the establishment commits any of the crimes provided for in Article 3 of this Law, or if any of the managers of the establishment commits any of such crimes more than once.
3. A private treatment facility shall be barred from possessing narcotic drugs and psychotropic substances if any of its employees in charge of such substances commits any of the criminal acts provided for in Article 3 of this Law more than once.



General Provisions

Article 58

Any person who participates in committing any of the acts provided for in Article 3(1, 2, 3, 4, and 5) of this Law, whether by conspiracy, incitement, or assistance, shall be subject to the penalty prescribed for such act.

Article 59

1. Any person who attempts to commit any of the crimes provided for in Article 38(1) of this Law shall be subject to imprisonment for a period not exceeding 10 years and a fine not exceeding fifty thousand riyals.
2. Any person who attempts to commit any of the other crimes shall be subject to a penalty not exceeding half the maximum imprisonment and fine penalties prescribed under this Law for committing such crime.
3. In addition to the provisions of paragraphs (1) and (2) of this Article, the court may, in all cases, impose the flogging penalty as it deems appropriate.

Article 60

1. The court may impose a penalty less than the minimum imprisonment penalty provided for in Articles 37, 38, 39, 40, and 41 of this Law if it has reasonable grounds therefor or if it has reason to believe that the convicted person will not violate this Law again based on his conduct, past, age, or personal circumstances or on the circumstances under which the crime was committed, or due to any other reason. The court may also stay the execution of the imprisonment sentence rendered pursuant to Article 48 of this Law for the same reasons, unless the violator commits a violation for which he was previously convicted. In all cases, the grounds on which the judgment is rendered must be stated.
2. If a convicted person commits any of the crimes punishable under this Law within a period of three years from the date of the stay of execution of the penalty imposed on him, the court may terminate the stay of execution of said penalty and order execution thereof without prejudice to the penalty prescribed for the new crime.
3. If the period of the stay of execution lapses and the convicted person does not commit any of the crimes punishable under this Law during such period, the stayed judgment shall be deemed null and void and of no legal effect.

Article 61

A perpetrator, other than a person who commits incitement, who reports any of the crimes provided for in Article 3 of this Law to the competent authorities before they become aware thereof shall be exempt from the penalty prescribed for such crime. If, however, the report is made after the authorities become aware of the crime, such exemption shall only apply if the report leads to the apprehension of the remaining perpetrators, if possible.



Article 62

1. If a person commits multiple crimes punishable under this Law prior to the issuance of a final judgment against him for any of such crimes, he shall only be tried and sentenced for the crime with the harshest penalty.
2. If a crime is punishable under this Law and any other law, the harsher penalty shall apply.

Article 63

More than one fine penalty may be imposed on the convicted person; such penalties shall not, however, invalidate a confiscation penalty.

Article 64

Discretionary flogging penalties may be combined; in such case, the harsher penalty shall be sufficient, unless the judge decides otherwise, provided that an explicit conviction is made for each crime.

Article 65

The provisions of Articles 27 and 28 of the Law of Criminal Procedure shall apply to the detection and recording of the crimes provided for in this Law.

Article 66

Subject to Article 26 of the Law of Criminal Procedure, the directors, officers, and noncommissioned officers of the General Directorate of Narcotics Control shall have law-enforcement capacity throughout the Kingdom with respect to the crimes provided for in this Law, and may, for such purpose, pursue crimes and their perpetrators, collect the evidence necessary to investigate such crimes, and seize and secure suspected substances.

Article 67

Designated employees at the Ministry of Health shall have law-enforcement capacity with respect to implementing the provisions of this Law and shall be tasked with entering pharmaceutical warehouses, warehouses for trading in narcotic drugs and psychotropic substances, hospitals, clinics, pharmacies, factories for pharmaceuticals and medical preparations, and chemical analysis laboratories that use narcotic drugs or psychotropic substances, and they may, for such purpose, access any books and records relating to the disposition of narcotic drugs and psychotropic substances.

Article 68

Designated employees at the agencies in charge of customs and the border guard, the Saudi Arabian Monetary Authority, and the Ministry of Agriculture shall have law-enforcement capacity, each within the powers of his job and in relation to the provisions of this Law. Such employees shall coordinate with the criminal investigation officers at the law enforcement agencies and investigating authorities in charge of narcotic drug cases.



Concluding Provisions

Article 69

The Ministry of Interior, Ministry of Justice, and Ministry of Health shall prepare the Implementing Regulations of this Law within 180 days from the date of its entry into force. The Regulations shall be issued pursuant to a resolution by the Council of Ministers and shall be published in the Official Gazette.

Article 70

The Minister of Health may amend the tables attached to this Law by adding or deleting substances or changing the order or concentration thereof. Such amendments shall be published in the Official Gazette.

Article 71

The tables attached to this Law and any amendments thereto shall be deemed an integral part of this Law.

Article 72

Imposition of the penalties provided for in this Law shall not prejudice the legitimate rights of others.

Article 73

This Law shall repeal the Law on the Prohibition of Trading in Narcotic Drugs and Psychotropic Substances issued by High Order No. 3318, dated 9/4/1353H, as well as any provisions conflicting therewith.

Article 74

This Law shall be published in the Official Gazette and shall enter into force 90 days following the date of its publication.



Appendix

Amendments

July 29, 2008 (Rajab 26, 1429H)

Royal Decree No. M/45 provides for the following:

- Amending Article 66 to read as follows:

"Subject to Article 26 of the Law of Criminal Procedure, the directors, officers, and noncommissioned officers of the General Directorate of Narcotics Control shall have law-enforcement capacity throughout the Kingdom with respect to the crimes provided for in this Law. To this end, they may:

1. pursue crimes and their perpetrators, collect the evidence necessary to investigate such crimes, and seize and secure suspected substances; and
2. seek the assistance of soldiers of the ranks of private and private first class in detection and recording tasks, and sign any reports pertaining to such crimes".